

26STCV00556 26STCV00556

County: los-angeles

Division: Civil Law and Motion

Department: 513

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Case Number: 26STCV00556 Hearing Date: August 27, 2026 Dept: 513

Superior

Court of California

County

of Los Angeles – Central District

Department 513

Michael Verdugo

;

Plaintiff,

vs.

Richard meng

, et al.,

Defendants.

Case No.:

26STCV00556

Hearing Date:

August 27, 2026

Time:

10:00 a.m.

[Tentative] Order RE:

Defendant's
Special Motion to Strike Complaint

MOVING PARTY: Defendant Christopher Damian Lee

RESPONDING
PARTY: Plaintiff Michael Verdugo

Special Motion to
Strike Complaint

The court considered the moving,
opposition, and reply papers filed in connection with this motion.

REQUEST
FOR JUDICIAL NOTICE

The court grants
defendant Christopher Damian Lee's requests for judicial notice pursuant to
section 452, subdivision (d) of the Evidence Code.

The court grants
plaintiff Michael Verdugo's requests for judicial notice pursuant to section
452, subdivision (d) of the Evidence Code.

LEGAL STANDARD

"The anti-SLAPP
procedures are designed to shield a defendant's constitutionally protected
conduct from the undue burden of frivolous litigation." *Baral v. Schnitt* (2016)
1 Cal.5th 376, 393.)
"The

anti-SLAPP statute does not insulate defendants from any liability for claims arising from the protected rights of petition or speech.” It only provides a procedure for weeding out, at an early stage, meritless claims arising from protected activity.”

(Id. at p. 384.) “Resolution of an anti-SLAPP motion involves two steps. First, the defendant must establish that the challenged claim arises from activity protected by section 425.16. If the

defendant makes the required showing, the burden shifts to the plaintiff to demonstrate the merit of the claim by establishing a probability of success.” (Ibid. [citation omitted].) The

California Supreme Court has “described this second step as a ‘summary-judgment-like procedure.’” The court does not weigh

evidence or resolve conflicting factual claims. Its inquiry is limited to whether the plaintiff has stated a legally sufficient claim and made a prima facie factual showing sufficient to sustain a favorable judgment. It accepts the plaintiff’s evidence as true, and evaluates the defendant’s showing only to determine if it defeats the plaintiff’s

claim as a matter of law.

‘[C]laims

with the requisite minimal merit may proceed.” (Id. at pp. 384-385

[citations omitted].)

DISCUSSION

Defendant Christopher

Damian Lee (“Defendant”) moves the court for an order striking the Complaint for malicious prosecution in this action filed by plaintiff Michael Verdugo

(“Plaintiff”) pursuant to Code of Civil Procedure section 425.16, also known as the anti-SLAPP (“strategic lawsuit against public participation”) statute.

1.

First

Prong: Protected Activity

The court finds

that Defendant has met his burden to show that the allegations in the Complaint arise from protected activity. (Code Civ. Proc., § 425.16, subd. (b)(1).)

“Initially, the

moving defendant bears the burden of establishing that the challenged

allegations or claims 'aris[e] from' protected activity in which the defendant has engaged." (Park

v. Board of Trustees of California State University (2017) 2 Cal.5th 1057,

1061.) (T]he statutory phrase 'cause of action...arising from' means simply that the defendant's act underlying the plaintiff's cause of action must itself

have been an act in furtherance of the right of petition or free speech. (Citation.) In the anti-SLAPP context, the critical point is whether the plaintiff's cause of action itself was based on

an act in furtherance of the defendant's right of petition or free speech." (City of Cotati v. Cashman (2002) 29 Cal.4th 69, 78.)

The sole cause of

action alleged in the Complaint is for malicious prosecution in bringing the action entitled Meng, et al v. Mays, et al. Case No. 19STCV21850 in the Superior Court for the County of Los Angeles. (Complaint ¶¶ 4-10.) These allegations pertain on their face to writings made before a judicial proceeding and to writings made in connection with an issue under consideration or review by a judicial body. (Code Civ. Proc., § 425.16, subd. (e)(1)-(2).) For that reason, the court finds that Defendant has met his burden to demonstrate that the sole cause of action arises from acts in furtherance of Defendant's right of petition.

2.

Second

Prong: Probability of Success

The second prong

places the burden on the plaintiff to establish that there is a probability of prevailing on the challenged claim.

(Code Civ. Proc., § 425.16, subd. (b)(1).) To satisfy this burden, the

plaintiff must show that the challenged claim is both legally sufficient and

supported by a prima facie showing of facts to sustain a favorable judgment. (Oliveras v. Pineda (2019) 40 Cal.App.5th 343, 353.)

"This

is a '

"summary-judgment-like

procedure." (Citation.)

The pleadings and evidentiary submissions of both parties are considered

[citation], and the evidence favorable to plaintiffs is accepted as true. (Citation.) Plaintiffs need only establish

that their claim has ' "minimal merit" ' to avoid being stricken as a SLAPP." (Ibid. [internal citations omitted].)

To prevail on a claim for malicious prosecution, a plaintiff must prove that the underlying action was (1) terminated in the plaintiff's favor; (2) prosecuted without probable cause; and (3) initiated with malice. (Franklin Mint Co. v. Manatt, Phelps Phillips, LLP (2010) 184 Cal.App.4th 313, 333.)

The court finds that Plaintiff has not met his burden to establish there is a probability that Plaintiff will prevail on his claim for malicious prosecution because he has not shown that Defendant prosecuted the underlying action against him (1) without probable cause and (2) with malice against him. (Code Civ. Proc., § 425.16, subd. (b)(1).)

"[T]he probable cause element calls on the trial court to make an objective determination of the 'reasonableness' of the defendant's conduct, i.e., to determine whether, on the basis of the facts known to the defendant, the institution of the prior action was legally tenable. The resolution of that question of law calls for the application of an objective standard to the facts on which the defendant acted." (Sheldon Appel Co. v. Albert & Olier (1989) 47 Cal.3d 863, 878.)

Plaintiff presents no evidence tending to establish that Defendant lacked probable cause in pursuing the underlying action against Plaintiff. A contention that the testimony elicited at trial undercut the Defendant's claims and resulted in a complete victory for the defense is not itself evidence of lack of probable cause, because it does not bear upon the objective reasonableness of Defendant's actions. The court's Statement of Decision also does not prove that Defendant was objectively unreasonable in prosecuting or maintaining the action against Plaintiff.

More importantly, Plaintiff's opposition entirely fails to address the third element of malicious prosecution: malice. Plaintiff therefore fails to present a prima facie showing of facts sufficient to sustain a favorable judgment, and thus has not met his burden to establish a probability that Plaintiff will prevail on his claim for malicious prosecution.

For the reasons set forth above, the court grants Defendant's special motion to strike.

ORDER

The court GRANTS defendant Christopher Damian Lee's special motion to strike the Complaint.

The court orders that the Complaint filed by plaintiff Michael Verdugo is stricken as to defendant Christopher Damian Lee without leave to amend pursuant to Code of Civil Procedure section 425.16.

The court orders that defendant Christopher Damian Lee is dismissed from this action.

The court orders that (1) the trial set for September 20, 2028, and (2) the Final Status Conference set for September 8, 2028, are vacated.

The court orders that defendant Christopher Damian Lee is entitled to recover reasonable attorney's fees and costs in connection with this motion pursuant to Code of Civil Procedure section 425.16, subdivision (c)(1). Reasonable fees and costs shall be determined by a procedurally proper and regularly-noticed motion.

The court orders defendant Christopher Damian Lee to give notice of this ruling.

IT IS SO ORDERED.

DATED: August 27, 2026

Robert B. Broadbelt III

Judge of the Superior Court